

JP MORGAN CHASE BANK v. MACLEAN

21CF13648

PLAINTIFF'S MOTION TO VACATE JUDGMENT

This is a limited jurisdiction, collections case. Before the Court is a motion by plaintiff to vacate the clerk's entry of a default judgment herein.

This action was commenced by way of complaint filed on 07/06/21. According to plaintiff, after several unsuccessful attempts at personal service, defendant was sub-served at home with the summons and complaint on 08/03/21.

On 09/20/21, plaintiff requested entry of default and a clerk's judgment based upon the amount in controversy, with no request for prejudgment interest or legal fees. That same day, the clerk entered default and a judgment thereon.

Nine months later, on 06/07/22, plaintiff filed a motion to have that default judgment set aside. That motion was summarily denied pursuant to Local Rule 3.3.7.

Plaintiff has now renewed the same motion. There is no memorandum of points and authorities accompanying the motion, as is required by CRC 3.1113. The declaration accompanying the motion indicates that the default judgment may have been secured in violation of the automatic stay for bankruptcy filings, but the purported "Exhibit A" as evidence thereof is not attached to that declaration. However, if the debt owing to plaintiff was included in her schedules and subject to discharge, plaintiff need only file a satisfaction of judgment. If not, a set aside and a dismissal "without" prejudice is not appropriate.

Motion DENIED on the merits, but without prejudice to a renewed motion with a proper Memorandum of Points and Authorities and proper evidentiary support. The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

MURRAY v. SUCHY

20CV45088

PLAINTIFF'S MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

This is a dispute between neighbors involving allegations of trespass, nuisance, and – among other things – destruction of trees. Before the Court is plaintiff's motion for leave to file a First Amended Complaint, intended to consolidate allegations from the original and supplemental pleadings, and to add two new causes of action under Civil Code §3346. Plaintiff would also like to increase the number of "Doe" placeholders from 10 to 20. There is no opposition filed. According to the proof of service, notice of the motion was timely provided to defense counsel. According to plaintiff's counsel, defense counsel declined to stipulate to the request for leave.

To amend a pleading already at issue, the sponsoring party is required first to seek leave of court by way of noticed motion. (CCP §473(a)(1).) Pursuant to CRC 3.1324, the moving party must specify in the moving papers by page, paragraph, and line number the allegations proposed to be added and/or deleted; and include with the moving papers both a of the proposed amended pleading, a declaration specifying the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reasons why the request was not made earlier. Although the supporting declaration does not address the "when" or "why," the clear inference is that plaintiff's former counsel dropped the ball. Relief is therefore warranted, particularly because requests for leave to amend a pleading to conform to what the pleader actually knows are to be granted whenever possible, so long as doing so does not result in undue prejudice to the other side. (See *Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428; *Central Concrete Supply Co v. Bursak* (2010) 182 Cal.App.4th 1092, 1101-1102.) Prejudice exists where amendment would require delaying the trial, resulting in loss of critical evidence, or significant added litigation burden/costs. (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 486-488.) Nothing of the kind is apparent here. (See *Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 175-176.)

Motion GRANTED. Plaintiff shall file a serve a First Amended Complaint within 10 days. The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare formal Orders pursuant to Rule of Court 3.1312 in conformity with these rulings.